

# SENATE . . . . . No. 157

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## The Commonwealth of Massachusetts

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PRESENTED BY:

*Joan B. Lovely*

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a commission on the status of children and youth.

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PETITION OF:

NAME:

*Joan B. Lovely*

DISTRICT/ADDRESS:

*Second Essex*

# SENATE . . . . . No. 157

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By Ms. Lovely, a petition (accompanied by bill, Senate, No. 157) of Joan B. Lovely for legislation to establish a commission on the status of children and youth. Children, Families and Persons with Disabilities.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE SENATE, NO. 111 OF 2023-2024.]

## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act establishing a commission on the status of children and youth.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Chapter 3 of the General Laws is hereby amended by adding the following  
2 section:-

3           Section 71. (a) There shall be a permanent commission on the status of children and  
4 youth to consist of 20 persons, 5 of whom shall be appointed by the governor, 4 of whom shall  
5 be appointed by the speaker of the house of representatives, 4 of whom shall be appointed by the  
6 president of the senate, one of whom shall be the child advocate and 6 of whom shall be  
7 appointed by the student advisory council to the board of education established in section 1E of  
8 chapter 15; provided, however, that not more than 2 such persons shall be from the same regional  
9 student advisory council. Members of the commission shall be drawn from diverse racial,  
10 ethnic, religious, sexual orientation and socio-economic backgrounds; provided, however, that no

member at the time of appointment or re-appointment shall be older than 21 years of age.

Members shall be subject to chapter 268A as it applies to special state employees.

(b) Members shall serve terms of 3 years and until their successors are appointed. A vacancy in the membership of the commission shall be filled by the original appointing authority for the remainder of the unexpired term. Appointments shall be made in consultation with organizations that focus on children and youth including, but not limited to, the Massachusetts Boys State program, the Massachusetts Girls State program, the YMCA Youth in Government program, the Massachusetts Student Government Day program, the Boys and Girls Clubs of Massachusetts, Teens Leading the Way, the Children's League of Massachusetts, Massachusetts Citizens for Children, Generation Citizen, the Massachusetts Service Alliance, City Year, the Robert F. Kennedy Children's Action Corps, the Children's Mental Health Campaign, the Massachusetts Special Commission on Unaccompanied Homeless Youth, and the Mass Mentoring Partnership. One member is to be a youth aging out of foster care. Terms of office shall commence annually on October 1 and nominations for vacancies shall be solicited annually between May 1 and June 16 of each year through an open application process using a uniform application that is widely distributed throughout the state.

(c) The commission shall elect from among its members a chair, a vice chair, a treasurer and any other officers it deems necessary.

(d) The members of the commission shall serve without compensation but shall be reimbursed for any usual and customary expenses incurred in the performance of their duties.

(e) The commission shall conduct an ongoing study of all matters concerning children and youth and shall be guided by the tenets of the United Nations Convention on the Rights of

the Child and the Declaration and Plan of Action for the survival, development and protection of children and youth adopted by the World Summit on Children in 1990. In furtherance of that responsibility, the commission shall: (i) study, review and report on the status of children and youth in the commonwealth; (ii) inform leaders of business, education, health care, state and local governments and the communications media of issues pertaining to children and youth; (iii) serve as a liaison between government and private interest groups concerned with issues affecting children and youth; (iv) serve as a clearinghouse for information on issues pertaining to children and youth; (v) identify and recommend qualified youth for appointive positions at all levels of government, including boards and commissions, as the commission deems necessary and appropriate; (vi) assess programs and practices in all state agencies as they affect children and youth, as the commission deems necessary and appropriate; (vii) advise executive and legislative bodies on the effect on children and youth of proposed legislation, as the commission deems necessary and appropriate; (viii) promote and facilitate collaboration among local youth commissions and youth organizations, as the commission deems necessary and appropriate; (ix) organize programs to celebrate the positive contributions of children and youth including, but not limited to, the observance of Youth Honor Day established in section 15G of chapter 6 and the observance of Youth in Government Day established in section 15WW of said chapter 6; (x) establish a commonwealth award for exemplary community service which shall be presented to a graduating senior in each high school in cooperation with Massachusetts Secondary School Administrators' Association; and (xi) encourage programs that enhance the civic knowledge and engagement of youth in the democratic process with the goal of producing active and engaged citizens. The commission shall annually, not later than June 2, report the results of its findings

and activities of the preceding year and its recommendations to the governor and to the clerks of the senate and the house of representatives.

(f) The commission may: (i) use such voluntary and uncompensated services of private individuals, agencies and organizations as may from time to time be offered and needed; (ii) recommend policies and make recommendations to agencies and officers of state and local governments to effectuate the purposes of subsection (e); (iii) select an executive director and acquire adequate staff to perform its duties, subject to appropriation; (iv) establish and maintain such offices as it deems necessary, subject to appropriation; (v) enact by-laws for its own governance; (vi) hold regular, public meetings and fact-finding hearings and other public forums as it may consider necessary; (vii) exercise such other powers as it deems necessary to perform its duties.

(g) The commission shall meet at least quarterly, at the members' discretion. The governor, speaker of the house of representatives, president of the senate and designated members of the senate and house of representatives shall be invited to attend the monthly meetings on a rotating basis as determined by the commission.

(h) (1) The commission may request from state agencies such information and assistance as the commission may require.

(2) The commission may accept and solicit funds, including any gifts, donations, grants, bequests and federal funds for the purposes of the commission. Such funds shall be deposited in a separate account with the state treasurer and shall be expended by the commission in accordance with law.

(i) There shall be an advisory council to the commission which shall serve co-terminously with the governor and shall consist of the commissioner of elementary and secondary education or a designee; the commissioner of early education and care or a designee; the commissioner of higher education or a designee; the commissioner of youth services or a designee; the chief justice of the juvenile court or a designee, the commissioner of juvenile probation or a designee; the house and senate chairs of the joint committee on children, families and persons with disabilities or their designees; and the house and senate chairs of the joint committee on education or their designees. The governor shall additionally appoint members from organizations that focus on children and youth; provided, however, that the governor shall appoint 1 member from each of the following organizations from nominees submitted by the Massachusetts Boys State program, the Massachusetts Girls State program, the YMCA Youth in Government program, the Massachusetts Student Government Day program, the Boys and Girls Clubs of Massachusetts, Teens Leading the Way, the Children's League of Massachusetts, Massachusetts Citizens for Children, Generation Citizen, the Massachusetts Service Alliance, City Year, the Robert F. Kennedy Children's Action Corps, the Children's Mental Health Campaign, and the Mass Mentoring Partnership. There shall be a co-chair appointed from among the executive branch representatives, a co-chair appointed from among the legislative representatives and a co-chair appointed from among the judicial branch representatives.

SECTION 2. Notwithstanding section 71 of chapter 3 of the General Laws, the initial members of the commission on the status of children and youth shall be appointed for the following terms: (i) the governor shall appoint 2 members for a term of 1 year, 2 members for a term of 2 years and 1 member for a term of 3 years; (ii) the speaker of the house of representatives shall appoint 2 members for a term of 1 year, 1 member for a term of 2 years and

99 1 member for a term of 3 years; (iii) the president of the senate shall appoint 2 members for a  
100 term of 1 year, 1 member for a term of 2 years and 1 member for a term of 3 years; and (iv) the  
101 student advisory council to the board of education shall appoint 1 member for a term of 1 year, 2  
102 members for a term of 2 years and 3 members for a term of 3 years.